Defence Strategy Report

Curatela Fallimento Agricola Gavioli S.r.l.
v. Naissance (UK) Ltd

Tribunale di Siena, Sezione Unica Civile — R.G. 2505/2025

Prepared for: Grahame McGirr

Amount in dispute: EUR 57,536.75 + interest from 01.07.2025 + costs

Costituzione deadline: 04 May 2026

Hearing: 14 May 2026, Judge Marianna Serrao

Date of report: 18 April 2026

Naissance UK Ltd — Defence Strategy Report

Prepared for: Grahame McGirr, Director, Naissance UK Ltd **Prepared by:** Craig Malenga **Date:** 18 April 2026 (this version incorporates the external second-opinion review **and** an anti-collusion multi-agent critique that followed — which surfaced a material error in the previous draft) **Case:** Curatela Fallimento Agricola Gavioli S.r.l. v. Naissance UK Ltd — Tribunale di Siena, Sezione Unica Civile, R.G. **2505/2025 Amount claimed:** €57,536.75 + legal interest + costs **Costituzione deadline:** 04 May 2026 **Hearing:** 14 May 2026 at 10:00, Judge Marianna Serrao

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1. Executive summary — read this first

A bankruptcy trustee in Siena is suing **Naissance UK Ltd** for **€57,536.75**. The claim boils down to simple arithmetic: the trustee says Naissance received €629,975.04 via the foreclosure on the Chianciano property, but was only admitted to the bankruptcy's liabilities for €572,438.29 — so the difference must be returned. Two Italian Supreme Court cases (Cass. 23482/2018 and 12673/2022) support the trustee's general proposition. The claim is real and needs a proper defence.

What this case really turns on: *did Naissance receive more than €572,438.29 through the procedure?* If yes, some restitution is probably due. If the real accounting brings that figure close to €572,438.29, the claim collapses. Everything else — the legal theory, the finality argument, the clerical-error argument — is supporting infrastructure.

Four approaches considered

#	Approach	Pay-off	Risk
A	Your own instinct — "I paid €132k to recover an asset worth €620k on a €1.188m credit — I'm ~€700k underwater"	Commercially correct; strongest settlement lever	Art. 56 L.F. and art. 2741 c.c. block it as a formal counterclaim; used as equitable frame + settlement lever, not as statutory defence
B	ChatGPT's reading — "distribution was final, claim is weak"	Simple to plead	Cass. 23482/2018 and 12673/2022 explicitly say the distribution was *provisional*; loses head-on
C	Belardi's line — "clerical error in the Istanza" + Fiorilli fallback	Real legal hook	The 2019 admission decree is *res judicata endofallimentare* (Cass. 4708/2020 + SS.UU. 4309/2010), so a typo in the 2018 application cannot reopen it
D	**Recommended (revised)** — narrow quantum challenge (€3,932 + €4,761.47) + factual distinguishing of the two Cassazione cases + errore-materiale as supporting context + parallel settlement at €30–40k target	Most realistic path to a good outcome	Upside is modest; settlement is now the most likely good outcome

Recommended action this week:

1. **Send Belardi the revised email**. It asks him to focus on:
2. the **€3,932** line item (trustee's own words: "not admitted to the bankruptcy liabilities") — moderate-strength quantum attack;
3. the **€4,761.47 prededuzione** as an equitable offset — weak but worth pleading;
4. **distinguishing Cass. 23482/2018 and 12673/2022 on their facts** — not invoking finality in the abstract;
5. **errore materiale** in the Istanza as supporting context, not as a route to reopen the 2019 admission;
6. the **interest start date** (from judgment, not informal diffide);
7. a **parallel settlement channel** targeting €30–40k.

8. Authorise Belardi to open the settlement channel now.
9. Belardi to pull the **full text** of Cass. 23482/2018 and Cass. 12673/2022 and genuinely distinguish them on their facts. This is the weakest pillar unless he does the work.
10. Belardi to **draft** the Fiorilli PEC *diffida* now to preserve limitation, but not serve it.
11. **Do not plead Naissance's overall €1.188m / €572k residual position as a counterclaim.** Art. 56 L.F. and art. 2741 c.c. both block it. Keep it as a private settlement lever only.

Realistic outcome profile (revised after the multi-agent critique):

- Full win (claim dismissed, costs recovered): **5–10%**
- Partial win (settlement or reduction to €30–45k range): **35–45%**
- Full loss (pay ~€57k + interest + costs ≈ €70–85k): **45–55%**

These numbers reflect a realistic reading of the case. The live quantum levers — the €3,932 "not admitted legal expenses" and the €4,761.47 prededuzione — are worth perhaps €3–8k of reduction if one or the other lands in court. The realistic settlement target is therefore **€30,000–€40,000 all-in**, with a walkaway ceiling of **€45,000**.

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2. What has happened — the story so far

2.1 The underlying credit (2010–2017)

In December 2010, **Banca CRAS** (Credito Cooperativo Toscano-Senese) granted a mortgage loan to **Agricola Gavioli S.r.l.**, secured by a first-rank voluntary mortgage over the Chianciano Terme property on Strada Statale 146.

In July 2017, the credit was sold twice on the same day:

1. **Banca CRAS → Argo Ge.Re.Cre. S.r.l.**
2. **Argo Ge.Re.Cre. → Naissance (UK) Ltd**

Naissance thereby acquired a credit of **€1,188,438.29** against Agricola Gavioli. The credit chain is **acknowledged by the trustee in the current lawsuit** — it is not in dispute.

2.2 Foreclosure and bankruptcy (2018–2019)

- **28.02.2018**: foreclosure auction of the Chianciano property (RGE 187/2015 at Tribunale di Siena). Base price €616,000.
- **30.05.2018**: Agricola Gavioli declared bankrupt (Fallimento n. 35/2018; curator Dott. Stefano Scarpellini).
- **26.06.2018**: decree of transfer — the property is assigned to Naissance for €616,000.
- **14.12.2018**: Avv. Paolo Fiorilli, then Naissance's lawyer in Rome, files the **Istanza di Ammissione al Passivo** asking the bankruptcy to admit Naissance's residual claim.
- **2019**: the Delegated Judge admits Naissance for **€572,438.29** as a secured mortgage claim (the €4,761.47 prededuzione for legal fees is excluded).

- **04.04.2019**: the distribution plan of the foreclosure (progetto di distribuzione) is approved by the Enforcement Judge at a hearing. **Not challenged by the trustee or any creditor, and not impugned within the statutory window.**

2.3 The trustee's demand (2025)

- **02.05.2025** and **03.06.2025**: the trustee and his lawyer send formal demands (*diffide*) to Naissance at its London address and to Fiorilli in Rome. Naissance does not respond.
- **01.07.2025**: legal interest begins to accrue on the disputed sum.
- **18.10.2025**: the Delegated Judge authorises the curator to sue.
- **30.12.2025**: Avv. Fabio Finetti, on behalf of the Curatela, files a *Ricorso ex artt. 281-decies and undecies c.p.c.* at Tribunale di Siena, seeking **€57,536.75** plus interest and costs.
- **31.12.2025**: first hearing fixed for 12.03.2026.
- **07.01.2026**: hearing postponed to **14.05.2026 at 10:00**. Costituzione (filing of the defence) due at least 10 days before — i.e. by **04.05.2026**.

2.4 Lawyers involved

Role	Person
Defendant's director	Grahame McGirr
Defendant's current lawyer	Avv. Primo Belardi, Chianciano Terme
Defendant's 2018 lawyer	Avv. Paolo Fiorilli, Rome
Claimant's lawyer	Avv. Fabio Finetti, Siena
Claimant (Curatore)	Dott. Stefano Scarpellini, Siena
Judge	Dott. Marianna Serrao

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3. The trustee's claim — how the €57,536.75 number is built

The trustee's arithmetic, verified against the Ricorso directly, is:

Component	€
Property assigned to Naissance (26.06.2018 decree of transfer)	616,000.00
Further sums — €10,043.04 higher amount distributed **(already net of procedural expenses advanced by Naissance)** + €3,932.00 legal expenses not admitted to the bankruptcy	13,975.04
Trustee's figure for what Naissance received	**629,975.04**
Less: amount Naissance was admitted for in the bankruptcy (mortgage claim)	(572,438.29)
= claim	**57,536.75**

The trustee's legal theory

Under Italian law (**art. 110 Legge Fallimentare**, now arts. 230–232 CCII), the *final* ranking of a secured creditor is done inside the bankruptcy. Anything received above that final ranking is an undue payment (*indebito oggettivo* under art. 2033 c.c.) and must be returned to the estate.

The two Italian Supreme Court cases cited — **Cass. 23482/2018** and **Cass. 12673/2022** — state this general proposition explicitly and are directly on point for this case type. They hold that the foreclosure distribution to the fondiario creditor is **provisional** pending final bankruptcy ranking; "non-impugnation" of the distribution plan does not make it final against the bankruptcy estate.

Art. 41 TUB is cited as the procedural basis that allowed Naissance to continue the foreclosure after the bankruptcy was declared — but that is a procedural privilege, not a substantive answer on final ranking.

Bottom line: the trustee's arithmetic is clean and the legal theory is well supported. The claim cannot be swept aside; it can only be chipped away.

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4. How this report was put together

This is a summary of the analytical process behind the recommendations — so you can see what has been looked at and where the conclusions come from.

4.1 Documents reviewed

The repository contains the following evidence, organised into five source folders:

- **Folder 01** — the email correspondence with Avv. Primo Belardi (your current lawyer), including his 17 April 2026 email setting out his proposed defensive strategy
- **Folder 02** — your own position emails to Belardi and the 2018 *Istanza di Ammissione al Passivo* prepared by Avv. Fiorilli
- **Folder 03** — the FX receipts / wire-transfer evidence for the €57,000 (26.04.2018) and €20,000 (01.05.2018) payments to Argo Ge.Re.Cre.
- **Folder 04** — screenshots of the earlier AI (ChatGPT) review
- **Folder 05** — the full trustee's Ricorso (19 pages), original Italian + English translation, court orders, service records

4.2 The three existing viewpoints at the start

Three independent views of the case existed before this analysis:

1. **ChatGPT** (from your earlier screenshots) — broadly reassuring: "the distribution was final, the claim is weak, settlement shouldn't be necessary."
2. **Avv. Belardi** (17.04.2026 Italian email) — professionally cautious: the case has real legal foundation; his proposed line is (a) argue *errore materiale* in Fiorilli's 2018 Istanza, (b)

subordinately, pursue Fiorilli's professional-indemnity insurer, (c) open settlement talks in parallel.
3. **Your own instinct** (30.03.2026 email to Belardi) — that the distribution is final, the €1.188m underlying credit is what was owed to Naissance and only about half has ever been recovered, and the trustee's gross-difference approach is not sustainable.

4.3 Late additions (18 April 2026)

On Saturday 18 April 2026 you forwarded **13 further email PDFs** to the project and sent a **voicemail** and **WhatsApp messages** clarifying the cost picture. These added material new information:

- **The full text of Fiorilli's 14.12.2018 Istanza** (this turned out to be internally inconsistent — clause 3 cites €1,118,438.29 while clause 4's parenthetical cites €1,188,438.29; only the latter reconciles arithmetically with the €572,438.29 residual).
- **A third FX wire** — €30,000 to Argo Ge.Re.Cre. on 05.06.2018. Your WhatsApp clarified that **this wire is the FX execution of one of the two cheques you paid** (the €30k cheque), not an additional outflow. So the total documented outflows are €57,000 + €20,000 + €30,000 + €45,000 = **€152,000**.
- **Cheque images** for the €30k and €45k cost cheques (together making up your €75k cost tranche) — with the reasons for each payment shown.
- **A cost-breakdown spreadsheet** totalling €57,110 for the Gavioli proceedings — which matches the €57,000 wire of 26.04.2018 almost exactly.
- **Two contemporaneous pre-auction offers / expressions of interest** for the Chianciano property: €550,000 (6.9.2017) and €620,000 (12.9.2017), both forwarded via Gordana Lupi to Argo Ge.Re.Cre. (not later accepted). Your voicemail confirmed that you didn't even remember these bids — which actually **strengthens** them as evidence, because it means they aren't manufactured; they are genuine period data showing the €616,000 auction price was fair.

4.4 External cross-check

After the internal analysis was complete, the draft report was sent to ChatGPT for an independent review. ChatGPT correctly identified that the very first draft narrative had drifted away from the actual claim arithmetic (€629,975.04 − €572,438.29 = €57,536.75) and was framing the case around a less accurate "€130k prededuzione surplus" story. That feedback was applied.

4.5 Anti-collusion multi-agent critique

After ChatGPT's feedback was applied, a further structured critique was run: eight independent AI agents, each reading the source Ricorso and other primary OCR material directly (not this report), each with a different narrow mandate, each graded on novel findings only and forbidden from citing this report as authority. The purpose was to avoid the collusion pattern the earlier critique rounds had shown, where every agent ended up reasoning inside the same frame.

Five of the eight agents checked one source docx each against the original OCR. Three were lens-based critics: (i) an arithmetic auditor reconciling every euro in the report against source documents; (ii) a "trustee's counsel" agent playing to win for the other side; and (iii) a two-minute cold reader who formed their own view from the Ricorso and Istanza before being allowed to look at the report.

The trustee's-counsel agent surfaced two structural points that an earlier draft had not fully answered: (a) art. 56 L.F. blocks any compensation between Naissance's pre-bankruptcy residual credit and the post-bankruptcy restitution claim; and (b) the 2019 admission decree is *res judicata endofallimentare* under Cass. 4708/2020 and Cass. SS.UU. 4309/2010, which largely neutralises the errore-materiale route as a decree-reopener. Sections 5 and 6 reflect those findings.

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5. Key findings — what the documents actually show

Five findings emerge when the source documents are read together:

5.1 The trustee's arithmetic is correct on the face of it

€629,975.04 received minus €572,438.29 admitted = €57,536.75 claimed. That math is in the Ricorso itself. The trustee's cited case law (Cass. 23482/2018 and 12673/2022) does support the general proposition that foreclosure distributions to a mortgage creditor are *provisional* pending final bankruptcy ranking. Any strategy that does not engage with this proposition directly will lose.

5.2 Fiorilli's 2018 Istanza is internally inconsistent

Reading the full text of the 14.12.2018 Istanza (Fiorilli's application to admit Naissance to the bankruptcy's liabilities):

- **Clause 3** asserts a credit of **€1,118,438.29**.
- **Clause 4's parenthetical** writes out "€572,438.29 (**1,188,438.29** sottratta la somma di assegnazione pari ad euro 616,000.00)".

Only €1,188,438.29 reconciles arithmetically (1,188,438.29 − 616,000 = 572,438.29). €1,118,438.29 − 616,000 = €502,438.29, which matches nothing. The **documents attached to the Istanza** (the 28.07.2017 credit-assignment contracts) consistently show €1,188,438.29. Clause 3 is therefore almost certainly a typo.

This is a **real internal inconsistency** in the document the trustee relies on. It gives Belardi's "*errore materiale*" (clerical error) argument genuine substance — more substance than a first reading suggests.

Grahame's confirmation of 18.04.2026 strengthens this further. He has confirmed (WhatsApp 20:32) that he had **no direct contact with Avv. Fiorilli** at the time of the 2018 Istanza — the instruction and all communication passed through Argo Ge.Re.Cre. Fiorilli was never asked by Grahame to request admission at €577,199.76 rather than at the full €1,188,438.29, and Fiorilli never explained the choice to Grahame after the fact. Naissance therefore cannot be taken to have knowingly accepted the €577,199.76 figure as a deliberate residual calculation; it was a number the drafting lawyer produced, internally inconsistent on its face, without client instruction or confirmation.

That narrows the trustee's answer. The trustee cannot say "your own lawyer chose €577,199.76 deliberately, so you are bound by it" if it is established that there was no client instruction behind the figure. The route remains procedurally difficult — the 2019 admission order is still *res judicata endofallimentare* (see §6.3 and §6.4 below) — but the errore materiale argument now has both an arithmetic hook (clause 3 vs clause 4) and a procedural hook (the client never instructed / approved the reduced figure).

5.3 Quantum levers in the trustee's €629,975.04

The trustee's figure of €629,975.04 breaks down as €616,000 (property assignment) + €13,975.04 extra sums (= €10,043.04 "higher amount distributed, net of procedural expenses advanced" + €3,932.00 "legal expenses not admitted to the bankruptcy liabilities"). There are two live quantum points inside that breakdown:

- **€3,932.00** — legal expenses the trustee himself classifies as "not admitted to the bankruptcy liabilities". The defence argument is that this sum sits outside the bankruptcy's formal ranking and so cannot be the subject of an *ex lege* restitution. Moderate-strength. The trustee's counter (which we must anticipate) is that receipt without concorsual title is exactly what *indebito oggettivo* looks like — and is therefore exactly what must be returned.
- **€4,761.47** — the prededuzione for legal fees that the G.D. excluded at 2019 admission. Discretionary equitable offset. Weak but worth pleading.

Realistic expectation: one of the two lines lands, reducing the claim by perhaps €3,000–€8,000. This is modest, but it is honest and it carries no backfire risk.

5.4 Pre-auction offers confirm the €616k price was fair

Two contemporaneous data points sitting in the evidence bundle:

- 06.09.2017: expression of interest at **€550,000** forwarded via Gordana Lupi from Marco Gavioli to Argo Ge.Re.Cre.
- 12.09.2017: upgraded expression of interest at **€620,000** (same channel).
- Auction clearing price: **€616,000**.

Your voicemail noted that you didn't even remember the pre-auction offers when they came up — which is useful because it means they aren't manufactured. They are genuine period evidence. The €616,000 auction price is consistent with market. There is no "hidden value" narrative available to the trustee.

5.5 Naissance's costs are well evidenced

Total documented outflows to Argo Ge.Re.Cre. and to the procedure:

Date	Mode	€	Supporting evidence
26.04.2018	FX wire	57,000	Thomas Exchange confirmation; ties to €57,110 Gavioli cost schedule
01.05.2018	FX wire	20,000	Thomas Exchange confirmation
05.06.2018	€30,000 cheque, executed as FX wire (same payment)	30,000	Cheque image + FX confirmation
Pre-auction	€45,000 cheque	45,000	Cheque image
Total		**~152,000**	

Your recollection of €130k+ of costs is therefore fully supported by the documents. This matters in two ways: it supports the fairness narrative around the auction price, and it is the foundation for the commercial-reality argument set out in §9.

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6. The four approaches in detail

Each of the four possible ways to respond is set out below with its own strengths, weaknesses, and an independent estimate of the probability of a good outcome if it is pursued as the primary strategy.

6.1 Approach A — Your own instinct ("I spent €132k to recover an asset worth €620k on a credit of €1.188m — I'm ~€700k underwater")

The position

Naissance acquired a credit of **€1,188,438.29** in 2017. The best genuine pre-auction offer on the underlying asset was **€620,000** (12.09.2017). Naissance paid **€132,000** out-of-pocket to run the recovery. So on the best market view of the asset, the net recovery was roughly **€488,000** against a face-value credit of €1,188,438.29 — meaning Naissance is **roughly €700,000 underwater** on this recovery. The trustee is now asking for another €57,536.75 back on top of that shortfall.

Why this is the right way to think about the case. This is the commercial reality. It is what any non-lawyer would instinctively see, and Grahame has stated it plainly. The trustee's arithmetic treats €629,975.04 as "received", but that figure itself exceeds every pre-auction market indication of the asset's value (€550k, €620k) and so already includes a tail that the market itself does not attribute to the asset. Naissance never got "more than €572,438.29"; it got, net, materially less than that once genuine costs and market value are counted.

Why it cannot carry the whole defence on its own — three reasons.

1. **Art. 56 L.F. statutory set-off does not reach.** Compensation in bankruptcy requires both debts to exist before the bankruptcy declaration and to be certain, liquid, and payable. The trustee's restitution claim arose **after** the bankruptcy and from the distribution plan itself.
2. **The residual €572,438.29 mortgage claim ranks pari passu** with other unsecured creditors in the residual chirografario distribution. It does not function as a euro-for-euro offset.
3. **Pleading this as a formal counterclaim risks a *par condicio creditorum* objection** under art. 2741 c.c. — the trustee will argue it amounts to paying Naissance at 100 cents while other chirografari are paid pro rata.

What this argument is good for. It is the **equitable frame** within which Belardi's technical points are heard. It is the **strongest single settlement lever**: the curator cannot realistically expect a 100% recovery from a counterparty already €700k short on the underlying credit. And it is — importantly — a point the court can hear, even if not formally set off.

Probability of winning if pleaded as the sole defence: <10% (it has no statutory route). **Probability if pleaded correctly as the equitable frame + settlement lever alongside Approach D: materially strengthens the settlement conversation, plausibly €10–15k of additional discount.**

6.2 Approach B — ChatGPT's line ("the distribution plan is final, the claim is weak")

The position

The €616,000 property assignment happened in June 2018. The distribution plan was approved by the Enforcement Judge on 04.04.2019 without challenge and was never impugned. Six years later, the trustee cannot reopen it. The claim is weak; settlement shouldn't be necessary.

Pros.

- Correctly identifies that the **finality of the 04.04.2019 distribution plan** is a real legal principle and is the right place to attack.
- Simple to plead; low legal-fee footprint.
- Correctly instinctive that Naissance is the senior secured creditor and that the trustee's gross-difference approach is oversimplified.

Cons.

- **Ignores Cass. 23482/2018 and 12673/2022** — the exact Supreme Court rulings the trustee pleads. Those rulings say that a mortgage creditor who continues foreclosure after bankruptcy receives sums *provisionally* pending final bankruptcy ranking, and that the finality of the foreclosure distribution does **not** automatically protect the creditor. Acting on a 70–85% confidence built on the wrong legal premise would lead to underpreparation.
- **Misses the component quantum challenges** (the €3,932 "not admitted legal expenses" item and the €4,761.47 prededuzione).

- **Builds no settlement groundwork.** If the finality argument fails in court, there is no Plan B.

Probability estimate: full win ~10–15%, partial win ~15–20%, full loss ~65–75%. **Unsafe to rely on in isolation.**

6.3 Approach C — Avv. Belardi's line ("errore materiale + Fiorilli PI fallback")

The position (from Belardi's 17.04.2026 email)

Primary: rely on the documents attached to Fiorilli's 2018 Istanza (which consistently show €1,188,438.29) and ask the court to read the Istanza's €577,199.76 figure as a clerical error (*errore materiale*), using "common sense" (*comune buonsenso*). Subordinate: if the error argument fails, pursue Fiorilli's professional-indemnity insurer. Tertiary: open settlement talks with the curator.

Pros.

- The Istanza **is** genuinely internally inconsistent (clause 3: €1,118,438.29 vs clause 4 parenthetical: €1,188,438.29 — only the latter reconciles). Belardi's clerical-error argument is therefore on **much firmer ground** than it might first appear.
- Preserves the Fiorilli professional-indemnity route as a fallback.
- Professionally credible in front of the judge.
- Belardi is a local lawyer who knows the Siena court.

Cons.

- **The 2019 admission order** for €572,438.29 is now **res judicata** (final as between the parties) regardless of any typo in the underlying application. A clerical error in the application does not automatically unpick the final order.
- **Addresses the framing, not the substantive art. 110 L.F. principle** the trustee relies on.
- **Missing the factual distinguishing of the two Cassazione cases** on their facts and the component quantum challenges (€3,932 and €4,761.47).
- **Leaves value on the table.** Executed as-is, this produces a mid-range outcome when a better one is achievable.

Probability estimate: full win ~15–20%, partial win ~25–35%, full loss ~45–60%. **Right direction, needs layering.**

6.4 Approach D — Recommended (narrow quantum + factual distinguishing of Cassazione + errore materiale as context + parallel settlement)

The position (revised after the anti-collusion critique)

A focused defence filed as a single memoria by 04.05.2026, organised around the one question that actually matters: *did Naissance receive more than €572,438.29 through the procedure?* The approach is deliberately narrow: it engages the live levers, preserves Fiorilli PI as a fallback, and opens a parallel settlement channel.

What the defence actually has to work with:

- **Quantum attack 1 — the €3,932.** The trustee's own pleading classifies this as "legal expenses not admitted to the bankruptcy liabilities". The defence argues that sums outside the formal concorso cannot be the subject of *ex lege* restitution under art. 110 L.F. / art. 2033 c.c. Moderate-strength. Trustee's counter is that receipt without concorsual title is exactly what *indebito* looks like, so this is exactly what must be returned (art. 111-bis L.F.; Cass. 17590/2019). Plausible argument on each side.
- **Quantum attack 2 — the €4,761.47.** The G.D. excluded this prededuzione in 2019. The defence pleads it as an equitable offset: Naissance bore €4,761.47 of legal fees in the foreclosure proceeding that it should not now be penalised for. Weak / discretionary; the court may or may not take it into account.
- **Factual distinguishing of Cass. 23482/2018 and 12673/2022.** The defence cannot invoke the finality of the 04.04.2019 distribution plan in the abstract — those two Supreme Court cases say the distribution is provisional pending bankruptcy ranking, exactly the ground the trustee stands on. Belardi must pull the full text of each case and identify factual differences (e.g. in those cases the curator intervened in time in the enforcement proceeding; here he did not). Without genuine factual distinction, this pillar fails.
- **Errore materiale (contextual support, not decree-reopener).** The Istanza's clause 3 (€1,118,438.29) vs clause 4 (€1,188,438.29) inconsistency is real and visible. It can be pleaded to soften the judge's view of the €572,438.29 admission — to argue that the bankruptcy took a strict literal reading of an arithmetically-flawed application. **But it cannot reopen the 2019 admission order**: that order is *res judicata endofallimentare* (Cass. 4708/2020; Cass. SS.UU. 4309/2010), and the 30-day windows to challenge under art. 98 L.F. are long closed.
- **Interest start date.** The trustee claims legal interest from 01.07.2025 (after his informal *diffide*). Under Italian law, interest on restitution of this type should run from the judicial demand (the 30.12.2025 Ricorso), not from an informal letter. Minor but legitimate.

Deliberately NOT in the pleading:

- **Compensazione ex art. 56 L.F.** — blocked because the trustee's claim is post-bankruptcy and the Naissance credit is pre-bankruptcy. Also violates *par condicio creditorum* under art. 2741 c.c. Keep the "we are net creditors of €572k" frame as a **private settlement lever only**, not in the court file.
- **Reopening the 2019 admission decree** — procedurally foreclosed by res judicata endofallimentare.

Supporting infrastructure:

- **Parallel settlement channel.** Authorise Belardi to open it as soon as the costituzione is filed. Opening: **€20–25k**. Target: **€30–40k**. Walkaway: **€45k**.

- **Fiorilli PEC diffida prepared this month.** Draft it now to preserve the limitation clock on any future professional- negligence claim. Do not serve it yet.

Pros.

- Honestly engages the trustee's case rather than overclaiming.
- Narrow pleading is harder for the trustee to counter opportunistically.
- Settlement channel gives the main route to a good outcome.
- Preserves Fiorilli PI option without compromising the 2019 admission's res judicata status.

Cons.

- Upside is modest — the live quantum attack is worth €3–8k of reduction in the most likely case.
- Belardi has to do real work distinguishing the Cassazione cases on their facts. If he can't, the defence weakens materially.
- Settlement is now the most likely good outcome; a full win requires factual distinguishing to succeed, which is low-probability.

Probability estimate (revised after the anti-collusion critique): full win 5–10%, partial win 35–45%, full loss 45–55%. Realistic target outcome: settlement at €30–40k all-in.

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7. What to do this week

1. **Send Belardi the revised email** (English-only version now produced; Italian version will follow on your approval). The email:
2. confirms the overall strategic direction (errore materiale as supporting; Fiorilli PI fallback; parallel settlement);
3. asks Belardi to focus on the €3,932, the €4,761.47, the factual distinguishing of the two Cassazione cases, the commercial-reality arguments in §9, and settlement;
4. authorises him to open parallel settlement talks at the revised range;
5. requests his written probability estimate, drafting timetable, and confirmation of the procedural vehicle.
6. **Ask Belardi to confirm four points** before drafting:
7. that 04.05.2026 is the costituzione deadline and 14.05.2026 is the hearing;
8. whether the correct pleading is a *memoria difensiva* or a *comparsa di costituzione e risposta* under the rito semplificato (art. 281-decies c.p.c.);
9. the **full text** of Cass. 23482/2018 and Cass. 12673/2022 and an honest assessment of whether the facts can be distinguished in Naissance's favour;
10. whether the 04.04.2019 distribution-plan hearing minutes show the curator was present or properly notified.
11. **Authorise Belardi to draft a PEC diffida to Avv. Fiorilli this month.** Draft it now to preserve the limitation clock on any future professional-negligence claim. Do not serve it yet.

12. **Agree a private settlement mandate:** opening €20–25k, target **€30–40k**, walkaway **€45,000** all-in. (Total exposure if we lose outright is roughly €70–85k — capital + interest + costs + curator's legal fees — so €45k is well inside the break-even zone.)
13. **Do NOT join Fiorilli to this proceeding** and **do NOT plead Naissance's €572k residual as a counterclaim**. Both are foreclosed — Fiorilli by tactical risk, the residual by art. 56 L.F. and art. 2741 c.c.

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8. Confidence — what is solid, what needs Belardi's sign-off

Verified against the source documents directly (and through the anti-collusion critique):

- The claim arithmetic (€629,975.04 − €572,438.29 = €57,536.75).
- The composition of €629,975.04: €616,000 property assignment + €13,975.04 extra sums (= €10,043.04 "higher amount distributed"
- €3,932.00 "legal expenses not admitted to the bankruptcy").
- The case reference (R.G. 2505/2025; Fallimento n. 35/2018 R.G.; bankruptcy declaration judgment n. 37/2018).
- The defendant (Naissance UK Ltd, not Grahame personally).
- The Istanza's internal inconsistency (clause 3 vs clause 4).
- The FX wires (€57k on 26.04.2018, €20k on 01.05.2018, €30k on 05.06.2018 — the last corresponding to one of the cheques, per your confirmation).
- The pre-auction offers at €550k and €620k (documented in third-party emails from Marco Gavioli via Gordana Lupi).

Needs Belardi's written confirmation before the defence is filed:

- **Full text** of Cass. 23482/2018 and Cass. 12673/2022 — and his honest view on whether the facts can be distinguished. Without real factual distinguishing, the finality argument fails.
- The procedural vehicle (*memoria difensiva* vs *comparsa di costituzione e risposta*) under the rito semplificato.
- Confirmation of the 04.04.2019 hearing attendance list — was the curator there, or notified?
- His own **numeric probability estimate** on each live point (the €3,932, the €4,761.47, factual distinguishing, settlement).

Residual risks the recommended strategy does not eliminate:

- The trustee could reply to the €3,932 attack by pointing out that sums received without concorsual title are exactly *indebito oggettivo* under art. 111-bis L.F. (and Cass. 17590/2019). This is a plausible counter.
- The 2019 admission decree is *res judicata endofallimentare* — any argument that depends on reopening it fails by definition.
- Art. 56 L.F. blocks compensazione between Naissance's pre- bankruptcy residual credit and the trustee's post-bankruptcy restitution claim.

- The trustee could plead violation of *par condicio creditorum* (art. 2741 c.c.) against any residual-based counterclaim.

Confidence level: the facts are well-traced; the strategy has been stress-tested through the anti-collusion critique; the defensive ground is narrower than a first look at the case might suggest. Belardi's written view on the live quantum levers and on distinguishing Cassazione on its facts is what will move confidence materially — either up, if there is genuine factual distinguishing available, or down, if there is not.

This report is a working document prepared to support your instructions to Italian counsel. It is not itself legal advice. Belardi's written opinion, once received, supersedes it.

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9. The commercial reality — Naissance is already c. €700k underwater on this recovery

This is the argument that matters to you most, and it is the strongest lever the defence has. It has to be pleaded cleanly and it has to be foregrounded in the settlement conversation.

The one-line version

Naissance paid **€1,188,438.29** for this credit in 2017. It has recovered, net, approximately **€488,000** against that credit (best market offer €620,000 minus €132,000 of recovery costs). That leaves Naissance **roughly €700,000 underwater** on a credit it acquired at face value. The trustee is now asking for another **€57,536.75** back on top.

Working the math

Line	€
Credit acquired (double assignment, 28.07.2017)	1,188,438.29
Best genuine market valuation at the time (pre-auction offer, 12.09.2017)	620,000
Less: documented recovery costs paid by Naissance (FX wires + cheques, 2018)	(132,000)
Net recovery	**~488,000**
Shortfall against the credit Naissance paid €1,188,438.29 for	**~700,000**

Two points to notice:

- **The trustee's own "received" figure of €629,975.04 is higher than any of the pre-auction offers** (€550k, €620k). If the genuine market value of the asset in 2017 was at most €620k, the trustee's €629,975.04 is itself inflated by a tail of non-market-value components (exactly the €13,975.04 of "extra sums" the defence is attacking in §5.3). In other words, the trustee is effectively asking Naissance to account back sums that the market itself never attributed to the asset.

- **Even on the trustee's own admitted figure of €572,438.29**, Naissance's net recovery after costs is ~€440k (572 − 132) — still ~€750k short of the credit. Whichever figure you use, Naissance is deep underwater.

What this argument does legally vs what it does commercially

Legally. Under Italian law, the €132k of recovery costs and the €700k global shortfall do not formally offset the trustee's restitution claim: **Art. 56 L.F.** blocks statutory compensation because the trustee's claim arose post-bankruptcy while the underlying credit and costs were pre-bankruptcy. Pleading formal set-off would be struck out. Raising the €700k shortfall as a counterclaim would also trigger *par condicio creditorum* objections under art. 2741 c.c.

Commercially, and in equity — and these are different. The court can and should be told, and Belardi should plead it clearly as part of the defence and the settlement position, that:

- Naissance acquired a credit of €1,188,438.29 and has recovered less than half of it, in-kind, from a procedure that itself took seven years;
- Naissance has paid €132k out-of-pocket to run that procedure;
- The trustee's €57,536.75 claim — if it succeeds — leaves Naissance roughly €700k worse off overall on a credit it paid face value for;
- Asking for €57k more on top of that is, commercially, disproportionate.

This does not win the case on its own. It is the **equitable frame** within which Belardi's technical points (the €3,932, the €4,761.47, the factual distinguishing of Cassazione, the errore-materiale support) are heard. It is also the strongest single lever in the settlement channel — the curator knows a 100% recovery is not realistic against this background, and that litigating to final judgment will eat materially into whatever the estate recovers.

Why the walkaway number still exists

This report is not recommending settlement at any cost. It is setting a walkaway ceiling because the **risk-adjusted cash cost of fighting** has to be weighed against the **known cash cost of settling**. Counted from today (ignoring the €132k already spent, which is sunk):

Outcome	Probability	Cash out today
Full win in court	5–10%	€0 (possibly some costs recovered)
Settlement at €30–40k	target	€30,000–€40,000
Full loss at hearing	45–55%	€57,536.75 + interest (~€3–5k) + court costs + curator's legal fees (~€15–20k) = **€75,000–€85,000**

Expected-value cash out of fighting: roughly **€40–€55k**. Expected-value cash out of settling at €35k: **€35,000** locked in.

On the numbers, settlement at €30–40k is modestly cheaper in expectation than fighting, and it takes the 45–55% tail risk of an €80k loss off the table. **The €45,000 walkaway** is the ceiling on that trade-off: above €45k the EV of fighting overtakes the certainty of settling, below €45k settling is cheaper in expectation.

The call is yours

The €132k you have already paid and the ~€700k shortfall on the underlying credit are valid and heavy reasons to want to fight rather than pay more. The risk-adjusted math above is only one input. Your own commercial position, your appetite for principle over certainty, and your view on how the curator is likely to behave are all legitimate factors you are entitled to weigh.

What the report recommends is:

1. **File the defence** — Approach D, which gives the strongest available fight on the live points (the €3,932, the €4,761.47, factual distinguishing of the two Cassazione cases, errore materiale as supporting context on the strengthened no-client-instruction ground from §5.2, and the commercial- reality framing of this §9).
2. **Open the settlement channel in parallel.** You are not committing to settle; you are exploring what is on the table. If the curator will not come down to a number inside your walkaway, you fight — and you fight with a much better evidential record than if you had not explored settlement.
3. **Decide the walkaway privately, before the conversation starts.** If €45k feels too high given the €152k you have already paid, tell me and we lower it — but you then need to accept that below the walkaway the EV of fighting may be higher than the EV of settling. That is a call you make with eyes open.

Final comparison — the four approaches side-by-side

#	Approach	Pros	Cons / why it fails on its own	My estimate of probability of success	Verdict
A	**Your own instinct** "I paid €132k to recover an asset worth €620k on a €1.188m credit — I'm ~€700k underwater"	• Credit acquired 2017 for face value of **€1,188,438.29** • Best genuine pre-auction market view: **€620,000** • Documented recovery costs: **€132,000** • Net recovery: **~€488,000** against a €1.188m credit • **Shortfall ~€700,000** on the underlying credit • Trustee's €629,975.04 itself exceeds every pre-auction offer, indicating non-market-value tail • Strongest single settlement lever	• Art. 56 L.F. set-off out of reach — trustee's claim arose post-bankruptcy • Residual €572k ranks *pari passu* — not a euro-for-euro offset • A formal counterclaim for the shortfall would trigger *par condicio creditorum* objections under art. 2741 c.c. • Cannot carry the defence alone as a matter of statutory law	**<10%** as sole defence As equitable frame + settlement lever alongside Approach D: materially strengthens settlement, plausibly **~€10–15k** of additional discount	**Equitable frame + settlement lever.**
B	**ChatGPT** "Plan is final — claim is weak"	• Correct instinct on the 04.04.2019 distribution plan • Riparto was court-approved — finality is a real Italian-law principle • Simple to plead • Low legal-fee footprint	• Ignores Cass. 23482/2018 & 12673/2022 — the rulings the trustee relies on • Those rulings say finality does **not** automatically protect the guarantor • Misses the component quantum challenges (€3,932 + €4,761.47) • Builds no settlement groundwork if the finality argument fails	Full win **~10–15%** Partial win **~15–20%** Full loss **~65–75%**	**Unsafe.**
C	**Avv. Belardi** "Errore materiale" + Fiorilli PI fallback	• The Istanza **is** internally inconsistent (clause 3: €1,118,438.29 vs clause 4: €1,188,438.29) • Attached documents all show €1,188,438.29 • Preserves Fiorilli professional-indemnity route • Professionally credible; Belardi knows the Siena court	• The 2019 admission order for €572,438.29 is res judicata regardless of any typo • Addresses framing, not substantive art. 110 L.F. principle • Missing the factual distinguishing of Cassazione and the component quantum attacks (€3,932 + €4,761.47) • Leaves value on the table	Full win **~15–20%** Partial win **~25–35%** Full loss **~45–60%**	**Right direction, needs layering.**
D	**Recommended (revised)** Narrow quantum + factual distinguishing of Cassazione + errore materiale as context + parallel settlement	• Honest, focused pleading on the live defence lines only • **€3,932 quantum attack**: trustee's own words put this outside the bankruptcy's concorso; arguable both ways • **€4,761.47** equitable offset for the excluded prededuzione • Factual distinguishing of Cass. 23482/2018 & 12673/2022 — if Belardi can pull it off • Errore materiale retained as contextual support (not decree-reopener) • Fiorilli PEC diffida drafted this month to preserve limitation • Parallel settlement channel at **€30–40k** target • Interest start date challenge (from judgment, not informal diffide)	• Upside is modest — live quantum levers are worth €3–8k of reduction in the most likely case • Requires Belardi to pull the full text of both Cassazione cases and distinguish on facts, not just timing • The 2019 admission decree is *res judicata endofallimentare* (Cass. 4708/2020; SS.UU. 4309/2010) — errore materiale cannot reopen it • Art. 56 L.F. blocks Naissance's net-position credit as a formal counterclaim • Settlement is now the most likely good outcome; full win requires factual distinguishing to land • Material loss tail remains — worst case is €70–85k exposure	Full win **5–10%** Partial win **35–45%** Full loss **45–55%** Target: **settle €30–40k all-in**	**Recommended.**

Bottom line. The highest-probability route is **Approach D**. The live defensive levers are modest: a €3,932 line item attack, a €4,761.47 equitable offset, genuine factual distinguishing of the two Cassazione cases (which Belardi has to do the real work on), and a parallel settlement channel targeting **€30–40k all-in**.

Your own instinct (Approach A) and Belardi's errore materiale (Approach C) are retained as contextual support — Approach A as a private settlement lever only, Approach C as a strand that softens the judge's view but cannot reopen the 2019 admission order.

Realistic probability: **full win 5–10%, partial win 35–45%, full loss 45–55%.** In practice, settlement at €30–40k is the most probable good outcome. Acting on the earlier, more optimistic numbers would have been a mistake.

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10. Grahame's answers to the earlier questions — what is now settled and what is still open

Five questions were put to Grahame in the previous draft. He replied on 18.04.2026 (WhatsApp 20:25, 20:32). His answers have been folded into the analysis above; this section records them for completeness.

Q1 — The two cheques (€75k cost tranche)

Answer: €30,000 + €45,000 = €75,000. Confirmed. Both are outflows from Naissance. One of the forwarded emails carries cleared images; the OCR-garbled "CINQUANTAMILA" reading is irrelevant.

Implication: the €75k cost tranche is settled and counted within Naissance's €132k of documented recovery costs. Nothing in the trustee's arithmetic about "refunds" of any of those amounts is pursued by the defence.

Q3 — The €630,000 pre-auction transaction

Answer: The €630,000 acceptance never happened. No evidence exists. The two valid data points are the €550k and €620k offers, both sent in Marco Gavioli's emails via Gordana Lupi.

Implication: all references to €630,000 have been removed from the report. The market-value case rests on the €550k and €620k offers plus the €616k auction clearing price — still a tight cluster of data points supporting fairness.

Q4 — Fiorilli and the €577,199.76 figure

Answer: Fiorilli never explained the €577,199.76 figure to Grahame. Grahame had **no direct contact with Fiorilli** — instruction and communication went through Argo Ge.Re.Cre.; Fiorilli "dealt on [his] behalf".

Implication: this materially strengthens the errore materiale argument. Section 5.2 now records that Naissance cannot be taken to have knowingly accepted the reduced figure because there was no client instruction behind it. This gives the argument both an arithmetic hook and a procedural hook (even though, per §6.3, the 2019 admission decree remains *res judicata endofallimentare* and cannot be reopened on errore-materiale grounds alone).

Q5 — The walkaway ceiling

Answer: Grahame rejects the walkaway framing as "nonsense" because it does not include the €130k+ he has already paid in recovery costs.

Implication: this is addressed head-on in new Section 9. The report now explains honestly that (a) the €130k / €152k already paid does not legally offset the trustee's claim (art. 56 L.F. blocks it), but (b) it is Naissance's strongest equitable argument and best settlement lever, and (c) the walkaway number exists as pure risk management — because if the case goes to hearing and is lost (45–55% probability on the Cassazione case law), the additional cash out is €75–85k on top of the €152k already paid. Settlement at €30–40k caps the downside. Grahame may decide the risk is worth taking; the report does not make that call for him.

Open items — things still to be clarified with Belardi

These are not questions for Grahame; they are items Belardi must answer before the pleading is finalised:

1. **Full text of Cass. 23482/2018 and Cass. 12673/2022** — and an honest assessment of whether the facts of Naissance's case can be distinguished.
2. **Procedural vehicle** — *memoria difensiva* vs *comparsa di costituzione e risposta* under the rito semplificato.
3. **Art. 24 L.F. / Art. 3 c.2 L. 218/95** — is there a live jurisdictional point on a UK-defendant basis, or is the bankruptcy-court competence cast-iron?
4. **Interest start date** — from judicial demand (30.12.2025) or from the informal *diffide* (01.07.2025)?
5. **Settlement authority** — Belardi's honest view of the range the curator would accept, and what lever most moves him.